

Recent Frankfurt Critical Theory: Down on Law?

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Commenting on trends within Frankfurt critical theory in a 2014 interview, Nancy Fraser worries that

[a] great deal of the post-Habermasian currents of critical theory have entered into a kind of disciplinary specialization: people doing moral philosophy, philosophy of law, political theory disconnected from social theory . . . [I]t's a kind of politicism, or moralism or legalism — a single-minded focus on constitutional theory. I appreciate that no one can do everything, and that there is academic specialization, but I think this is a sad outcome for critical theory: it has lost the attempt to think about the social totality, which Habermas, at an early stage, did try to do, for better or for worse.¹

For many years, Fraser has productively tackled the task of rethinking the foundations of Frankfurt-inspired social critique. Sympathetic to the original Frankfurt School's interdisciplinary version of critical theory while cognizant of its limitations, she has long worried about recent critical theory's apparent deradicalization and intellectual fragmentation. Somewhat more surprising, however, is Fraser's polemical tone: critical theory, she now apparently believes, is jettisoning leftist social theory for a narrow "politicism or moralism," a single-minded "legalism" and accompanying constitutional theory.

Perhaps we should not make too much of impromptu comments in an autobiographical interview. Yet Fraser seems to have hit a raw nerve. Axel Honneth, Habermas' successor at Frankfurt and a longstanding advocate of a version of critical theory rooted in an updated left-Hegelianism, remarks in his recent *Freedom's Right: The Social Foundations of Democratic Life* (2014 [2011]):

I am explicitly opposed to the tendency to develop the foundations of a theory of justice solely on the basis of juridical concepts. Nothing has been more fatal to the formulation of a concept of social justice than the recent tendency to dissolve all social relations into legal relationship, in order to make it all the easier to regulate these relationships through formal rules.²

With echoes of Fraser, his latest book constitutes a direct attack on "moralism" and recent neo-Kantian versions of critical theory. A second main target is the flawed legalistic accounts of justice and the pitfalls of the (allegedly) ubiquitous endeavor to envision modern society first and foremost in juridical terms. As we will see, Honneth outlines many reasons for this position.

For now I merely note that he apparently shares Fraser's concern that contemporary critical theory is succumbing to legalist or juridical preoccupations that distort the nature of social reality while betraying the early Frankfurt School's Hegelian and Marxist fundaments, fundaments that both thinkers have worked so impressively to reconstruct.

Both Fraser and Honneth are too polite to name names. In the smallish world of Frankfurt critical theory, their targets are valued colleagues, former mentors (and also pupils), and good friends. Nonetheless, one can easily imagine whom they have in mind. Most prominent, of course, is probably Habermas, whose *Between Facts and Norms: Contributions to a Discourse Theory of Law and Democracy* (1996 [1992]), recent Frankfurt critical theory's single most impressive contribution to political and legal theory, ambitiously synthesized neo-Kantian discourse ethics with high-level jurisprudence and legal scholarship. In Habermas' shadows, many critical theorists have been inspired to engage far more rigorously and systematically than their predecessors with Anglophone moral and political theory, and especially the work of John Rawls, with one trend being what we might loosely describe as a moral or at least moral-philosophical turn.³ Among yet others working in the Frankfurt tradition we can identify a legal turn, with many critical theorists in recent decades accompanying Habermas into the messy terrains of legal and constitutional scholarship.⁴

If we are to believe Fraser and Honneth, however, these trends have apparently run their course. In part because of space limitations, and in part because I feel obliged (as an implicit target) to respond, I focus here exclusively on their worries about critical theory's excessive "legalism." A proper response to the "moralism" accusation will have to await another day (and also a more suitable respondent). Crucially, neither Fraser nor Honneth denies that a proper model of critical theory needs to say something significant about the law. In particular, Honneth discusses legal questions at length in *FR* and in other key writings. Their worry, as noted, instead lies with recent critical theory's (allegedly) overdone *legalism*, a tendency they view as engendering a troublesome reduction of critical social analysis to unduly legalistic theories of justice or "constitutional theory."

Their shared commitment to taking law seriously is forcefully expressed in a lively exchange that occurred

nearly fifteen years ago, an exchange in which law did not, admittedly, feature prominently, yet at crucial junctures illuminatingly surfaced. I revisit what Fraser and Honneth had to say in that debate not only in order to underscore their shared appreciation for the law, but also to consider whether or not they can successfully analyze it. I endorse a version of Honneth's worry that Fraser fails to provide a satisfactory basis for theorizing law or its proper place in critical theory. Despite Fraser's express fidelity to critical theory as an interdisciplinary endeavor, law's status within that project ultimately remains unclear (I).

Nonetheless, Fraser also scores decisive critical points against Honneth. I rely on those points to offer a detailed consideration of Honneth's discussion of law in *FR* (II). In part because his worries about the excesses of legalism rely on problematic claims about so-called "juridification" (*Verrechtlichung*), claims introduced but since abandoned by Habermas, Honneth's legal thinking also proves flawed. In my view, Honneth never satisfactorily justifies his hostility to legalism or legalistic theories (III). Finally, I briefly reflect on what constructive lessons can be drawn for Frankfurt critical theory from Fraser's and Honneth's interventions (IV).

I

In their wide-ranging 2003 exchange, Fraser and Honneth struggle to highlight the analytic and political advantages of their competing approaches, along with the corresponding disadvantages of their opponent's. Honneth, of course, there defends his position that a left-Hegelian reinterpretation of the concept of recognition can guide critical theory and best contribute to an understanding of modern society, which he envisions as having institutionalized three distinct spheres of recognition (love, law, and esteem or solidarity).⁵ On his account, the leftist critique of capitalism cannot be effectively reformulated by conceiving the economy as an autonomous "system" unburdened by the tasks of normative justification: with recourse to the language of social theory, he insists even there on "a certain primacy to social integration as against system integration."⁶ When properly conceived, a recognition-theoretical restatement of critical theory can allow us to make sense of capitalism and its pathologies.

In contrast, Fraser outlines what she describes as perspectival dualism, according to which social critique can only succeed on the basis of a dualistic theoretical framework in which the independent logics of redistribution and recognition are both taken seriously. Redistribution concerns socioeconomic matters and injustices based in the (capitalist) economy, whereas recognition relates to matters of cultural or symbolic justice. Social class is the crucial category in the first realm, while in

struggles over recognition "the victims of injustice are more like Weberian status groups than Marxian classes" (*RR*, 14). Hers remains at its core a theory of justice, in part because she is less of a Hegelian and more of a Kantian (and also Marxist) than Honneth (*RR*, 28).

For Fraser, Honneth's monistic recognition-centered theory obfuscates capitalism's operations and proffers a misleadingly "culturalist" reading of recent political struggles. In contrast, Honneth doubts that Fraser can adequately ground her dualism, which he finds unsatisfactory.

Pointing out that Fraser neglects the law in her lengthy (102-page) initial contribution to their exchange, Honneth first addresses the question of law: Fraser leaves it "out of her critical diagnosis of the times altogether" (*RR*, 151). We might describe this opening salvo as the *neglect thesis*. Underscoring the broader implications of Fraser's oversight, Honneth emphasizes his competing view of legal recognition as indispensable to personal integrity and modernity. Within his overall theoretical framework, the law not only possesses an independent analytic status but is pivotal to a vital set of social struggles. As he had previously outlined in *Struggle for Recognition: The Moral Grammar of Social Conflicts* (1995 [1992]), the battle for rights is essential to moral progress and the achievement of self-respect. Fraser's neglect of the law, from Honneth's perspective, necessarily evinces a major lacuna. As he comments, "it seems above all to be processes of legalization — expanding the principle of legal treatment" that have been crucial to guaranteeing "the minimum preconditions of identity" in many areas of social life in modernity (*RR*, 188).

Honneth suggests that Fraser's legal lacunae point to some deeper problems. Most directly, it shows that it is *she* who in actuality has succumbed to a one-sided culturalist view of recognition, since her approach occludes the pivotal role of *legal* recognition (*RR*, 152). Only by disproportionately highlighting recognition's cultural and symbolic traits can Fraser construct the troublesome dualistic contrast between redistribution and recognition on which her overall framework depends. That dualism is flawed for many reasons, Honneth believes, but one of them is directly linked to Fraser's legal oversights. Her neglect of the law generates a certain tendency to downplay decisive "normative elements of the economic sphere," a "moral dialectic" inscribed deep within capitalism (*RR* 251, 152). Such a dialectic operates, for example in workplace battles when employees fight not just for a "functional safe-guard of their capacity to work" but for "a moral guarantee of the social recognition of their dignity and status" (*RR*, 251). Significantly, the relevant struggles are commonly fought on the legal terrain, culminating in "appropriate social-legal constraints of the employment

contract" (RR, 251). On Honneth's view, the "medium through which this sort of social struggle unfolds is modern law, which promises all members of society equal respect for their individual autonomy" (RR, 152).

In a powerful rejoinder, Fraser insists that her approach not only can address law's proper role in critical theory but can do so more effectively. Perspectival dualism, she counters,

conceives law as pertaining to both dimensions of justice, distribution and recognition, where it is liable to serve at once as a vehicle of, and a remedy for, subordination. On the recognition side, some legal struggles aim to undo expressly juridified status subordination — witness campaigns to legalize gay marriage; others resort to law to redress *nonjuridified* status subordination — witness campaigns to outlaw racial profiling or to mandate handicapped access. (RR, 220–1)

Her alternative framework, she adds, better acknowledges the centrality of law and rights to political and social struggles, whenever they occur, including situations where legal change or reform might target "parity-impeding norms" (RR, 221).

For Fraser, Honneth narrowly conceives of legal recognition as localized within one institutionally differentiated social sphere, conceived as fundamentally separate from alternative types of intersubjective recognition (love and esteem or solidarity) and their corresponding social practices. In short, Fraser responds with what we might dub the *compartmentalization thesis*: his account rests on a tripartite conceptual structure (for example, love, law, and esteem or solidarity) that misleadingly quarantines the law, and thus potentially obfuscates its pivotal role in many areas of social experience. Even if Honneth occasionally acknowledges that legalization shapes social struggles in varied social arenas, his theory's rigid tripartite structure means that it distorts law's role in those spheres of recognition conceived as distinct from legal recognition: "*Contra* Honneth . . . marriage has never been regulated by the principle of care. For most of history, rather, it has been a legally regulated economic relation" (RR, 219–20). The law decisively shapes intimate relationships in ways that Honneth's attempt to parcel it off into a separate sphere of recognition obscures.

In my view, Fraser has identified a real tension in Honneth's legal thinking; I say more about this tension below. On the one hand, law is conceived as constituting a distinct sphere of recognition, and one that at least in modernity has resulted in a corresponding system of rights differentiated from social practices based on alternative types of recognition (RR, 138–40).⁷ Law constitutes not just a form of recognition but a specific social sphere, occupying a separate social location, in crucial respects qualitatively distinguishable from

alternative social spheres, which at least in principle would be poorly served if legalization were somehow to infringe on them and their separate autonomous logics. In other words, legal recognition (and basic rights) is indispensable to the realization of "optimal" structures of recognition in modern society. At the same time, we need to guard the autonomy of non-legal social spheres and types of recognition against potentially dangerous and inappropriate "legalistic" invasions. In sync with this intuition, Honneth occasionally relies on spatial and even geographical imagery, describing moral progress in modernity, for example, as "achieved by the drawing of new borders between the individual spheres of recognition" (RR, 188).

On the other hand, Honneth regularly notes how political battles in many different social arenas often directly and fruitfully involve the law and rights. He occasionally infers that law, at least under modern conditions, possesses attributes in principle justifying the oftentimes decisive role it plays in countless areas of social existence:

Since the normative principle of modern law, understood as the principle of mutual respect among autonomous persons, has an inherently unconditional character, those affected can call on it the moment they see that the conditions for individual autonomy are no longer adequately protected in other spheres of society. Examples of such processes of legalization triggered "from below" include not only struggles for the realization of social rights, but also the complex debates taking place today over the legal guarantee of equal treatment within marriage and the family. (RR, 188–89)

On this competing account, far-reaching "legalization" represents not a violation of love as a distinct mode of recognition, for example, but instead potentially a legitimate and even necessary means to make sure that recognition in the sphere of intimacy takes a normatively acceptable form. Law does not disable but instead enables "structures of recognition" even outside the (legal) sphere of rights.

I believe that this theoretical ambiguity continues to plague Honneth's thinking in *FR*; we can productively build on Fraser's criticism to pinpoint some tensions in his most recent writings. Nonetheless, we also should credit Honneth with identifying a weakness in his interlocutor's legal thinking. He insists that for Fraser law

merely takes the form of a secondary guarantor of claims achieved elsewhere. Fraser still does not want to grant subjective rights — which make up the core of modern egalitarian legal systems — any independent significance in her theoretical program. Instead, state-sanctioned rights are to have only the purely instrumental function of equipping already achieved entitlements to cultural recognition or economic

redistribution with certain enforcement powers after the fact. This instrumentalism does not seem at all convincing to me, however, because it forgets that rights govern relations among actors in fundamental ways, and their significance to social interaction is thus not only functional. Rather, the subjective rights we grant one another by virtue of the legitimation of the constitutional state reflect which claims we together hold to require state guarantees in order to protect the autonomy of every individual. This interactive character of rights also allows us to explain why they should be understood as independent, originary sources of social recognition in modern societies. (*RR*, 251–2)

On this reading, Fraser fails to move beyond a limited “instrumentalist” view of law, according to which it serves “as a vehicle of, and a remedy for, subordination,” a device used alternately by the powerful or powerless to their advantage (*RR*, 220). We can describe this as the *instrumentalist thesis*. According to Honneth, Fraser’s view ignores how modern law and modern subjective rights are intimately linked to basic intersubjective structures of recognition, structures that not only serve more than instrumental or functional purposes but without which individual autonomy and the modern constitutional state would ultimately be unthinkable.

One need not fully endorse Honneth’s recognition-theoretical reworking of critical theory to appreciate his concerns. Fraser’s brief comments about the law, in fact, tend to emphasize its instrumental character. Despite a strong Kantian streak in her thinking, it never leads her — as it has so many others influenced by Kant⁸ — to think seriously about rights, the rule of law, or constitutionalism. Instead, Fraser’s Marxism — or at least some remaining vestiges of a traditional Marxist legal instrumentalism — here probably tend to get the upper hand.

More fundamentally, it remains unclear that Fraser’s theoretical framework provides a sufficiently complex basis for thinking fruitfully about the law, its place in contemporary society, or what a critical theory of the law might look like. Her dualistic theory’s overarching normative standard is what she calls “participatory parity,” defined in her exchange with Honneth as a norm of justice requiring of social arrangements that they necessarily permit all (adult) members to interact with one another as peers, “applied dialogically and discursively, through democratic processes of public debate” (*RR*, 36, 43). Not surprisingly perhaps, her theory’s normative underpinnings have provoked a lively response from many interlocutors.⁹

I am skeptical that “participatory parity” can get us far enough in grappling with the theoretical nuances of modern law or rights. As a starting point for understanding and perhaps justifying modern political (and maybe

social) rights, it might do some of the necessary work. Its spirit certainly seems consonant with many republican, radical-democratic, and traditional socialist legal theories. But as soon as we start to operate with a more complex (and, frankly, also more liberal) picture of modern law, as we must, its limitations emerge. Could we, for example, usefully rely on the idea of participatory parity to develop a sophisticated defense of negative or “liberal” liberties? How far could participatory parity get us in making sense of modern private law (property, contracts), or even international law, a legal arena in which many key principles and practices seem disconnected, for better or for worse, from Fraser’s radical democratic normative starting point? A more appropriate because less one-sided theoretical starting point would perhaps be some version of what Habermas has aptly described as the *co-primordality* of public and private autonomy, or democracy and basic rights.¹⁰ Fraser, in contradistinction to Habermas, might be taken as problematically suggesting that (radical democratic) participatory parity could do the complex theoretical work that he sensibly ascribes to a richer and more complex mix of democratic and liberal intuitions.

Fraser has little to say about the law, in part because the foundations of her theory, despite their many virtues, probably do not provide her with enough room for doing so. Those limitations help explain why she now apparently has few qualms about accusing some of her colleagues of reducing critical theory to legalism. Since the status of constitutional and legal scholarship within her framework remains unclear, the legal turn in recent critical theory probably must strike her as peculiar and potentially counterproductive.

Despite some weaknesses, in his exchange with Fraser Honneth at least *appears* to provide potentially fruitful normative and analytic tools for understanding the law. To see whether he has subsequently succeeded in using those tools, we need to turn to his recent *FR*.

II

Shifts both in his basic philosophical outlook and conceptual terminology notwithstanding, Honneth’s *FR*, like his previous writings, views law as expressing “an original social component of human subjectivity.”¹¹ Aiming to update and thus unavoidably also revise Hegel’s *Elements of a Philosophy of Right*, Honneth now talks of legal *freedom*, which he conceives, as he previously envisaged legal recognition, as an indispensable yet necessary component of a free and decent society. Honneth’s latest rendition of critical theory seems at least initially to offer substantial analytic room for an appropriate appreciation of modern law’s achievements.

Nonetheless, *FR* shows evidence of a subtle yet decisive shift in Honneth’s thinking about the law.

Building now as well on some of Habermas' controversial early insights about "juridification," Honneth is more adamant — or at least far more clear — than in previous writings about "legal pathologies" resulting from what he sees as the potential dangers or "absolutization" of legal freedom (*FR*, 86–94). On this updated analysis, critical theory needs to pay careful attention to the apparent excesses of legalism, excesses that lead too many astray, so as to reduce critical-minded social philosophy to correspondingly pathological (legalistic) theories of justice. Even more importantly, those excesses constitute major pathologies in contemporary society and need to be combated.

Honneth's worries are not, in my view, sufficiently defended. To begin to see why, we need first to grasp how the dilemmas of *compartmentalization* resurface.

On the one hand, *FR* often seems rightly cognizant of the manifold ways in which law and rights contribute to ensuring modern freedom. The volume's lengthy final section, where we encounter Honneth's discussion of the highest or most complete manifestation of freedom ("social freedom"), includes numerous allusions to the basically positive role law plays in both the market and democratic state.¹² Honneth grasps, as any thoughtful observer surely must, that many of the great political and social reforms that have partially humanized modernity have been codified in the law, and also that many reforms efforts not only culminated in demands for legalization but succeeded in part on the basis of legal and constitutional demands.

On the other hand, Honneth continues to associate the law with a specific set of circumscribed social practices and institutions, in which the ideal or principle of legal freedom is neatly inscribed, and from which he hopes to distinguish alternative (and allegedly more developed) forms of freedom along with their corresponding institutional instantiations. The seemingly tidy contours of his theory's architectonic structure, revealingly, are complicated by the fact that law and rights surface, as noted, at decisive junctures even in the "highest" spheres of social freedom, that is, in the market economy and also in democracy. As we will see, even in his discussion of law there, unfortunately, Honneth evinces a propensity to emphasize its congenital limitations. The underlying analytic reason, once again, is a built-in theoretical tendency to view law as a crucial yet necessarily compartmentalized "social component of human subjectivity," a vital feature of freedom and therefore essential to modern institutions, but one that, if permitted to colonize or supplant alternative forms of freedom and their institutional bases, risks becoming counterproductive. Because *FR* seems more preoccupied than the author's previous works with law's irrepressible flaws, his latest book correspondingly tends to highlight its potential dangers.

To be sure, there are legitimate reasons why one might worry about the inappropriate application of legalistic or judicial modes of analysis and reasoning to certain political and social realms, as the late Judith Shklar pointedly observed in a famous discussion of the topic.¹³ The type of reasoning found in the courtroom among legal experts, just to mention one example, is best conceived as different from discourse among grassroots political activists operating in civil society. An overly juridical model of political discourse might consequently do a real disservice to democratic politics. As the early Frankfurt School legal theorist Franz L. Neumann similarly observed in a thoughtful (1953) essay, legal or juridical freedom is indispensable yet still insufficient for a decent and free society, and thus needs to be complemented by what Neumann dubbed "cognitive" and also "volitional" freedom, both depending in his account on legal freedom while superseding it.¹⁴ Politically free and socially decent societies, in short, require more than basic liberal rights, constitutionalism, and the rule of law; authoritarian regimes (for example, nineteenth century Prussia or contemporary Singapore) can sometimes achieve a modicum of legal security or legal freedom. At first glance, Honneth's thesis that freedom needs to be viewed as containing much more than "mere" legal freedom seems uncontroversial.¹⁵

Nonetheless, Honneth's version of this otherwise potentially sensible intuition engenders difficulties, difficulties that appear to stem from his theory's basic structure. Honneth does not simply worry, like Shklar and others, about problematic misapplications or overextensions of legal or judicial rationality or modes of action. Despite some occasional comments in his exchange with Fraser suggesting otherwise, Honneth believes that law's role needs to be sharply and indeed fundamentally circumscribed in those social arenas which in his view instantiate alternative types of social recognition and freedom.¹⁶ This drive to *compartmentalize* law leads him to lament its "pathologies" when there is arguably little reason to do so. And it ultimately encourages him in *FR* to downplay a point he forthrightly acknowledged in his debate with Fraser: in modern societies, the medium of law is in principle essential to freedom and recognition *throughout* society. One might debate the specific reasons why,¹⁷ but the fact remains that legalization is *central* to freedom not simply in some limited social sphere of "legal recognition" or "legal freedom," but also potentially in other spheres of recognition and types of freedom.

Despite modeling his book on Hegel's *Philosophy of Right*, Honneth's discussion of the law in fact differs revealingly from his predecessor's.

First, Honneth's legal analysis is decidedly more truncated than that found in Hegel's *Philosophy of Right*, where substantial attention was paid not just to "abstract

right' (legal personality, property, contracts, etc.) but also to the "administration of justice" (for example, the judiciary), constitutionalism, criminal law, the rule of law, the separation of powers, state bureaucracy (and its relationship to the rule of law), and even international law.¹⁸ Hegel was impressively versed in both the great jurisprudential debates of his age and legal empirics and technicalities. Honneth offers a more limited account; he tends to focus his analytic energies on restating Hegel's critical comments about abstract right (*FR*, 73–6, 81–2). To be sure, Honneth undertakes a wide-ranging discussion of core modern (liberal, political, and social) rights, and he has many thoughtful things to say about them. Yet his preoccupation with law as a system of horizontal relations between and among carriers of basic rights means that he neglects core components of modern law. Such components — the *Rechtsstaat* (or rule of law) immediately comes to mind — may, on some theoretical accounts, be closely related to basic rights, yet it would still be mistaken to interpret them as nothing more than conceptually and institutionally ancillary to rights.¹⁹ Not surprisingly, even sympathetic readers will be hard-pressed to posit that Honneth has matched the nuanced exposition of modern law we find in the *Philosophy of Right*. In Honneth's analysis of the modern democratic constitutional state, for example, readers will look in vain for more than a cursory analysis of many familiar legal and institutional topics typically viewed as falling under its rubric (*FR*, 304–28).²⁰

This neglect is justified, Honneth perhaps believes, because sociology and historiography apparently provide richer resources for analyzing constitutional democracy than the "legal paradigm" of contemporary political philosophy (*FR*, 329). Yet the resulting gaps remain striking and ultimately problematic.

One of Honneth's central aims, of course, is to overcome the inappropriate juridical or legalistic preoccupations of contemporary political philosophy. Yet Honneth simultaneously wants to defend some quite robust claims about modern law's limits and pathologies, the narrow basis of his legal discussion notwithstanding. Tellingly, in a crucial section in which Honneth undertakes to update Habermas' juridification thesis, his main supporting examples are a Hollywood film, *Kramer v. Kramer*; and a recent novel, Benjamin Kunkel's *Indecision* (*FR*, 88–94). With the exception of some (controversial) writings by Philip Howard, a popular writer whose polemics about the dangers of legalism have gained him a following, mostly among US conservatives and others demanding so-called "tort reform," Honneth seems relatively unversed in the relevant scholarly literatures in jurisprudence and legal sociology.²¹

Second, Honneth's reworked version of Hegel is not just limited but highly selective. He relies on Hegel's ideas about the necessary limits of abstract right, which

in the *Philosophy of Right* represented a "sphere of the immediacy of right," an institutional realization of the least developed facet of modern freedom, modern legal personality, property, and contracts.²² Honneth boldly posits that Hegel's grasp of abstract right's limitations "gives us an essential tool for normatively reconstructing the development of subjective rights up to the present," and indeed the "entire spectrum of liberal rights" (*FR*, 76, 86). By relying on Hegel's critique of abstract right, we can grasp the basic limitations of modern liberal (and also, he claims, social) rights (*FR*, 76–80). Contrasting sharply to "political rights of participation," which "directly involve an activity that can only be carried out in cooperation," liberal and social rights merely "secure a protected free space for egocentric action, unimpeded by the pressures of responsibility towards others" (*FR*, 79, 23). They are "based on the right of individuals to a purely private disclosure of their own will (*FR*, 73).

Even if the underlying spirit of Honneth's move here is certainly akin to that of the Hegelian original, some programmatic divergences are revealing. Hegel, of course, also highlighted abstract right's limits in the opening section of *Philosophy of Right*. Yet he did so to demonstrate why and how *more developed features of modern law* (for example, the rule of law) could be sensibly viewed as representing correspondingly more mature instantiations of freedom. Much of the *Philosophy of Right*'s impressive analysis of legal topics was found in its detailed discussion of "ethical life," which for Hegel represented modern freedom in its most advanced varieties. On the basis of Honneth's reconstruction, one might easily miss the fact, for example, that Hegel was an ardent defender of codified formal law and the rule of law, a concept that only appears in passing in Honneth's analysis, and about which he sometimes seems worried or at least conflicted.²³ Viewed from an orthodox Hegelian position, Honneth devotes disproportionate attention to the *Philosophy of Right*'s opening critical discussion of abstract right, while neglecting Hegel's analysis of law in its more developed manifestations. This, of course, is a convenient strategy: abstract right's supposed limits serve Honneth as a launching pad for emphasizing what are purportedly fundamental limitations of vital accomplishments of legal modernity, namely modern liberal and social rights, as though one could directly apply Hegel's analysis of the legal bases of the modern bourgeois subject to an entire range of modern subjective rights. Not surprisingly, more than half of Honneth's chapter on legal freedom is devoted to exposing its narrowness, an outcome inconsonant with Hegel's overall — and decidedly more "legalistic" — account of freedom. The somewhat un-Hegelian conclusion Honneth draws is that we need to "go beyond the sphere of law" if freedom is to be fully

realized, and not just, as Hegel believed, beyond the limits of an limited and incomplete *component* of modern law (FR, 83).

Third, and somewhat predictably in light of the preceding discussion, Honneth also offers a rather one-sided reading of modern subjective rights and sometimes modern law more generally. “The core of legal freedom consists of a sphere of individual privacy,” in which “isolated actors with ostensibly strategic aims” pursue their private interests (FR, 81, 83). Liberal and social rights, on this view, create “a purely private monological space,” entitling every subject to “exit the network of communicative action and free itself of any normative obligations” (FR, 83–84). Modern labor law, for example, is apparently plagued by legal freedom’s congenital narrowness. Social rights in the workplace inappropriately extract workers

from the communities they had managed to establish. Here again we see the de-socializing effect of subjective rights: By enabling individuals to fend off unreasonable expectations and burdens, these rights tend to “alienate” these same individuals from their communicative surroundings, turning them into self-centered, “monological” legal subjects. (FR, 231)

Unfortunately, Honneth offers little evidence for this controversial empirical claim. From a conventional Hegelian perspective, the conflation of legal freedom with the right to “retreat from all social obligations and attachments” seems odd.²⁴ Hegel, of course, associated rudimentary forms of abstract right with the social institution of private property (FR, 81). The exegetical thesis that the *Philosophy of Right* viewed law as ensuring “that subjects can retreat from given attachments and obligations” seems surprising given the way in which even abstract right, in Hegel’s original version, was directly embodied in lived social practices (FR, 126).

More important for our purposes here, this analytic move again helps Honneth highlight law’s (allegedly) necessary limitations. If, in fact, core basic liberties represent nothing more than the liberty of the isolated, self-centered (bourgeois or at least property-owning) monad, who could deny that such liberties make at best a narrow contribution to freedom?²⁵

What Honneth provides in his pivotal defense of the idea of legal freedom’s limits is essentially a phenomenology of the modern legal subject. Unfortunately, his analysis seems rather lopsided. He is probably right that modern legal subjectivity requires of legal agents implicitly that they “encounter each other under abstraction from . . . personal motives and value orientations,” that as participants in a legal community individuals follow the general rules and respect the abstract rights of others, regardless of what they think about their beliefs or know about their intentions

(FR, 82). However, this hardly grounds the conclusion that “the law promotes attitudes and practices that block the exercise of the kind of freedom it enables” (FR, 83). This follows only because of Honneth’s hyper-privatistic reading of subjective right. Allegedly, modern law’s basically de-socializing, monological, and strategic contours hinder the modern legal subject — conceived primarily as a carrier of liberal and social rights — from viewing others as concrete ethical subjects, with whom we need to communicate and potentially pursue common projects. It forces us to view other persons not as dialogical and practical partners involved unavoidably in some larger system of social cooperation, but instead as “alien” competitors whose ideas and projects are not only distinct but strategically opposed to our own. Though resting on a form of recognition, the “egocentric detachment” modern law apparently favors conflicts with more developed forms of recognition (FR, 124–25). Even though every legal system is parasitical on mutual trust, legal freedom “prevents any access to the world of intersubjective attachments and responsibilities,” since it distorts and even negates intersubjective ties indispensable to successful identity formation and more developed types of freedom (FR, 84). Legal freedom promises private autonomy yet cannot support the ethical reflection and social cooperation on which those exercising it necessarily depend.

As far as an analysis of property or contract law goes, something could arguably be said in favor of this reading. Keep in mind, however, that Honneth has a bigger target in mind: he wants to extend Hegel’s worries about abstract right to arenas where they no longer unambiguously apply. The most immediate consequence is that Honneth downplays how even basic liberal rights necessarily represent more than the rights of the isolated, objectifying, selfish strategic actor. He also draws an overly sharp and probably misleading contrast between democratic and participatory rights, which in his view grant “collective autonomy to socialized citizens who deliberate in civil cooperation,” on the one hand, and civil and social rights, on the other (FR, 72). Even basic legal security and due process rights, however, can be plausibly interpreted as enabling richly developed forms of intersubjectivity, as inviting individuals to explore possible intersubjective attachments and responsibilities, along with accompanying forms of social cooperation. It is hard to see why they necessarily demand of us that we treat “partners in interaction merely as actors with strategic interests,” rather than as prospective dialogical and cooperative partners (FR, 85). Similarly, it is difficult to fathom how desirable forms of social intersubjectivity could thrive amid insecurity and arbitrary power, deplorable conditions which liberal civil rights and basic legal protections rightly target.

Honneth's related suggestion that modern social rights are analogously plagued by the (allegedly) atomistic and strategic core of modern legal personality seems similarly one-sided. Why not instead view social rights, as T. H. Marshall famously did, as indispensable to full participation in a shared political and social community, as essential to the autonomy of fully "socialized citizens" directly involved in social cooperation? Why posit that the legalization of social claims in the form of abstract rights means that they too ultimately constitute "a merely negative, interruptive relation to an ethical context of praxis" (FR, 86)? Honneth buttresses this thesis with concrete examples, observing that

[w]hen we invoke our guaranteed right to free speech, we necessarily relate to others who contest our right in a way that prevents us from grasping the others as addressees of what we intend to say. Whoever exercises the individual right to divorce as a means of separating from one's spouse has destroyed any possibility of commonly discussing their separate life paths in the future in light of their shared experience. And, finally, whoever insists on the right to his or her own opinion will not simultaneously be able to assert his or her beliefs in the public sphere of will-formation. In each case, the exercise of subjective rights only creates a kind of temporary situation in which the actual purpose of our autonomous life planning is suspended or bracketed. (FR, 85)

His observations here potentially represent fruitful empirical hypotheses and potential starting points for a phenomenology or perhaps a social psychology of legal experience. Yet they hardly seem self-evident. In fact, they probably follow only if we accept Honneth's unconvincing view of modern subjective rights as basically egocentric, objectifying, and strategic. But why do so?

Note also that Honneth here goes so far as to suggest that basic *political* rights are subject to the limits of legal freedom conceived as fundamentally strategic and egocentric. Though he delineates democratic from liberal and social rights, generally contrasting the privatistic character of the latter with the cooperative and more fully intersubjective contours of the former, here — perhaps revealingly — they get clumped together. On one plausible reading, Honneth's worries about the excesses of legalism are focused chiefly on *private* but not *public* law.²⁶ Yet at crucial junctures, I worry, the division between them gets blurred, and the critique of legalism is then perhaps directly extended to basic democratic rights like free speech.

When FR addresses developed forms of social freedom as instantiated in modern democracy, we encounter the same tendency to check what Honneth apparently considers an inappropriate enthusiasm for law and rights:

[O]ur historical review has shown how little the state can influence conditions in other institutional spheres. Neither in personal relationships nor in the economic system, both of which are founded on their own self-referential norms in turn linked to independent forms of social freedom, have political and legal interventions aided in the realization of these underlying principles. Instead, any advances have usually been the result of struggles that have transformed collective perception and mobilized the corresponding principles of freedom. Often, the law has only subsequently legalized improvements already attained through struggle, and in some cases this legal confirmation was either impossible or superfluous once these advances had taken the shape of changed habits and practices. The motor and the medium of the historical process of realizing institutionalized principles of freedom is not the law, at least not in the first instance, but social struggles over the appropriate understanding of these principles and the resulting change of behavior. (FR, 329)

Again we observe a tendency to *compartmentalize* law so as to downplay the direct and unmediated role it productively plays in many social contexts, including the economy and the family, in buttressing freedom. Honneth implicitly relies on sharp conceptual contrasts ("law vs. social struggle," "law versus habits and mores") to emphasize law's narrowness. Yet those contrasts are probably overstated. His own historical account, in fact, can be read against the grain as highlighting the ways in which social struggles, at least in modernity, are always simultaneously struggles about the law and rights, a point Honneth himself made when criticizing Fraser in their 2003 exchange:

[I]t seems above all to be processes of legalization — expanding the principle of legal treatment — that have the inherent potential to correctively intervene into other recognition spheres, ensuring the protection of the minimum preconditions of identity. (RR, 188)

Unfortunately, that crucial insight too often gets pushed to the wayside in FR.

To be sure, egalitarian mores and customs in the family or the economy, for example, are by no means typically "produced" by top-down state action or legal intervention. Yet it still remains the case that political and legal reform is intermeshed with such "cultural" shifts, and that it is difficult to imagine the latter without the former. Does Honneth really intend to claim that progressive legal changes in the family or gender relations, for example, temporally *followed* previous cultural or social shifts, or even that the shifts in question might have occurred without far-reaching political and legal reform? Of course, social struggles typically precede legal change. Yet such struggles are usually waged under the banner of legal reform and human rights. The law does not simply codify them "after the fact" but

provides a fertile starting point for fighting them and also future struggles as well.

At times, Honneth's target is nothing more than the simplistic (and rightly discredited) statist idea that one can legislate or regulate deep social change "from above," via "the initiative of the democratic legislature," without proper attention to the broader social and cultural context (*FR*, 330). That concern, of course, is perfectly legitimate. But to view it as providing evidence for the general dangers of legalism and legalistic theories of justice remains a stretch. At too many junctures in *FR*, in any event, Honneth now prefers to view the law as peripheral, secondary, and apparently even counterproductive to modern freedom. Unfortunately, he has failed to take advantage of the potentially fruitful insights about the law he sketched out in his exchange with Fraser. Instead, *FR* corroborates Fraser's worries about *compartmentalization*.

III

In order to bring his worries about the excesses of legalism home, Honneth revisits Habermas' ideas about *Verrechtlichung* (juridification), as originally formulated in the concluding sections of *The Theory of Communicative Action*.²⁷ There Habermas relied on a substantial empirical literature in order to posit that general legal regulation sometimes counterproductively served as a conduit by means of which the "media-controlled subsystems of the economy and the state intervene[d] with monetary and bureaucratic means" in ways that undermined rather than buttressed autonomy.²⁸ Inappropriate modes of legal regulation allowed for the "colonization" of the lifeworld particularly in those spheres of social activity — his examples included the family and schools — where communicative structures were relatively robust and formal organizations scarce.

Although Honneth drops Habermas' controversial socio-theoretical binary divide between system and lifeworld, he directly echoes him in diagnosing substantial evidence of a disturbingly widespread tendency "to focus so much on our role as bearers of [subjective] rights" that "we lose sight of the potential for arbitration through communicative action" (*FR*, 88). Legal freedom is dangerously "autonomized" when its unavoidable limits are ignored. Too often today, a preoccupation with abstract rights and formal legal rules proves counterproductive and potentially pathological.

Honneth appears uninterested in the reasons Habermas abandoned his original version of the argument, which underwent an appropriately extensive face-lift in *Between Facts and Norms*.²⁹ As Daniel Loick has noted, Honneth reproduces Habermas' initial unfortunate "propensity to downplay subordinative and violent relations in the family and school spheres."³⁰ In the process,

he far too uncritically embraces Habermas's flawed early diagnosis, similarly describing legalization as an inappropriate attack on social spheres where consensual and deliberative agreement allegedly can be reached chiefly "by resorting to shared values, norms, and customs" (*FR*, 89–90). According to Honneth, formal law is being disastrously allowed to invade the independent logic of more richly intersubjective social spheres.

Many decades ago, Fraser rightly criticized Habermas for implicitly positing a romanticized and basically sexist view of "virgin" consensual social relations in the family.³¹ Disappointingly, *FR* risks reproducing the same view. This misleading picture of schools and the family as potentially pristine communicative arenas, now subject to alien inroads by codified law, fits neatly with Honneth's framework and its tendency to compartmentalize law, its many empirical problems notwithstanding, and thus he apparently needs to salvage it. Unfortunately, the recycled version is no sounder than the original.

Honneth also reproduces a second worrisome element of Habermas' account. He believes that codified and abstract formal (or general) law results in violence to the social spheres in question, forcing subjects "to abstract from their concrete experiences and recognize their needs only to the extent that they fit into the schema of generally typified interests, thus undermining overall communicative life" (*FR*, 90). As Ingeborg Maus pointed out in another early rejoinder to Habermas, however, this thesis is empirically suspect for the simple reason that it badly misconstrues how legalization *actually* operates in the relevant social spheres, where we instead find what Max Weber famously described as far-reaching legal *materialization*: regulatory intervention in education and the family, as in many other arenas, now often relies on vague (and sometimes moralistic) norms, individualized measures, and other anti-formal legal trends, and neither codified general legal rules nor conventional modes of rule-based judicial or administrative decision-making. The pathologies Habermas misleadingly attributed to formal law could instead be more persuasively attributed to its absence, an absence that had opened the door to unchecked administrative and judicial discretion.³²

This last point is of more than mere empirical significance. A longstanding theme in Honneth's reflections on the limits of the law since *Struggle for Recognition* is that its generality and abstractness imply its necessary *Aufhebung* (supersession) if we are to achieve higher and more complex forms of recognition, where subjects relate not just to general or "abstract" but also specific or "concrete" others in mutually self-fulfilling ways:

Unlike modern legal recognition, social esteem is directed . . . at the particular qualities that characterize

people in their personal difference. Thus, whereas modern law represents a medium of recognition that expresses the universal features of human subjects, this form of recognition demands a social medium that must be able to express the characteristic differences among human subjects . . .³³

On this view, “[p]ersons can feel themselves to be ‘valuable’ only when they know themselves to be recognized for accomplishments that they precisely do not share in an undifferentiated manner with others.”³⁴ By viewing modern subjects primarily as abstract and “undifferentiated” persons, modern law apparently fails to entail more than circumscribed mutual recognition.

Many things could be said about this claim. For now I limit myself to one observation: Honneth downplays how modern law has *always* been both general and respectful of “concrete” and situation-specific particularities, in part precisely because of anti-formal legal trends widely discussed by prominent thinkers since Weber, including key representatives of Frankfurt critical theory (that is, Neumann and Kirchheimer). Any attempt to reduce modern “abstract” law to the notion of a necessarily limited and potentially pathological “homogenizing” legal recognition just does not hold water. Importantly as well, trends away from abstract or general law are not only often ambiguous in terms of their political consequences, as Maus (following Neumann) noted in her response to Habermas, but in some contexts clearly prove pivotal to brutal regressive attacks on modern pluralism and difference.³⁵ On this alternative reading, modern abstract right *protects* pluralism and remains indispensable to forms of social recognition between and among not just abstract but also “concrete” others.

Honneth radicalizes Habermas’ account by giving it a novel social-psychological twist: inappropriate general legal intervention contributes to the formation of personality types plagued by indecisiveness and a refusal to make lasting obligations. Unfortunately, the evidence provided for this thesis, Kunkel’s *Indecision* (2005), seems more anecdotal than systematic. The most speculative part of his exposition, Honneth’s claim here again relies on a partial interpretation of legal freedom as congenitally privatistic and thus “interruptive” of intersubjective obligations. Just as legal subjectivity entails a suspension or distancing from social obligations, Honneth apparently believes, so too do personalities unduly shaped by a legal or legalistic orientation prove incapable of forming binding commitments (*FR*, 92–95).

IV

Although Fraser and Honneth initially seem to possess well-positioned launching pads for analyzing modern law, neither ultimately succeeds in doing so. To be sure, both should be praised for challenging critical theory’s

fragmentation: they are right that some of us who have pursued critical theory-inspired legal and constitutional scholarship have occasionally lost sight of some of the tradition’s broader aspirations. Even in Habermas’ hugely sophisticated legal thinking we can sometimes identify a problematic strand of argumentation that works immanently to supplant the leftist critique of capitalism with a critique of law or “juridification.”³⁶ Critical theory needs both a rich and multifaceted analysis of capitalism *and* a sufficiently sophisticated (and critical-minded) analysis of modern law.

My discussion, of course, raises difficult questions about the proper structure a Frankfurt-inspired theory of law now *should* take. Should its basic contours be neo-Kantian, Hegelian, or Marxist? How might such a theory of the law best relate to mainstream jurisprudence and/or legal sociology? Fortunately, a burgeoning body of scholarship is already beginning to sketch out some preliminary answers. Those answers, to be sure, vary considerably; among those who believe that critical theorists should devote substantial energy to a proper analysis of the law, no easy consensus has emerged. Yet the resulting intellectual ferment and disagreement represent both an unavoidable and — in my view — basically healthy consequence of any serious attempt to keep a great intellectual tradition from becoming just another ossified “school” whose representatives seem more concerned with patrolling (intellectual) borders than gaining new insights.³⁷

Within the last two decades, those working within — or at least inspired by — the Frankfurt tradition have tried to integrate key contributions from legal and constitutional scholarship to investigate a range of vital questions. What models of constitutionalism seem most consonant with viable notions of civil society and/or deliberative democracy?³⁸ How might previous Frankfurt School theorists allow us to make sense of problematic trends in welfare state law and/or the legal substructure of economic globalization?³⁹ How might we best understand the growing importance of human rights within our emerging post-national legal order?⁴⁰ How best to re-conceptualize constitutionalism and sovereignty amid intensified globalization?⁴¹ Some of this literature is unabashedly ambitious, aiming at nothing less than a fundamental restatement of critical social theory.⁴² Other contributions are decidedly more modest, chiefly concerned with borrowing insights from the Frankfurt tradition in order to grapple, in an often pragmatic spirit, with specific political challenges or questions.⁴³

Although I cannot sufficiently document this point here, none of these contributions constitute “legalism” in the cramped sense used by Fraser or Honneth. The thinkers in question sympathize with progressive political movements and vibrant democratic politics, and some are openly anti-capitalist in orientation. The

present critique of legalism, I worry, will encourage sloppy dismissals of what is now — and will, it is to be hoped, continue to be — an important body of critical scholarship, one having deep roots in the work of first and second generation Frankfurt School political and legal thinkers like Neumann, Kirchheimer, and Habermas. Any successful attempt to overcome that legacy's limitations needs to do so, in good Hegelian fashion, not simply by abstractly negating but instead productively superseding previous contributions to legal scholarship, and thus by integrating its vital accomplishments and insights. I worry that the present preoccupation with the dangers of "legalism" impedes the ongoing pursuit of this valuable yet incomplete agenda.

Two final points need to be made. First, and as was already implicit in my analysis above, neither Fraser nor Honneth has matched the rich and multifaceted account of modern law we find in Habermas' massive *Between Facts and Norms*, a volume in which Habermas ambitiously engaged with the most important voices in modern legal and constitutional scholarship, and where not just modern basic rights but constitutionalism, the judiciary, the rule of law, regulatory law, and many other vital legal topics received their richest discussion within the Frankfurt tradition. Notwithstanding deep philosophical and methodological differences, Habermas' volume, in terms of its aspiration to provide an exhaustive account of the complexities of modern law, is arguably closer to Hegel's *Philosophy of Right* than is Honneth's *FR*. The same could be said, I believe, about Franz Neumann's *The Governance of the Rule of Law* (1986 [1936]), a similarly multipronged analysis of modern legal theory and praxis, whose theoretical accomplishments remain, even in present-day critical theory circles, woefully underappreciated.⁴⁴

Without an appropriately multi-sided perspective on modern law, I have a hard time seeing how the critique of "legalism" could possibly succeed. Particularly for those of a Hegelian bent who view normativity as rooted in — or at least intimately interlinked with — history, this lacuna seems particularly troublesome. Without a sufficiently complete analysis of modern law, how can we grasp both its "rational kernel" and its potential pathologies? Whatever the limitations of Hegel's original approach, he surely understood this point.

Second, from Kirchheimer and Neumann to Habermas, Frankfurt theorists have powerfully challenged the kneejerk anti-legalism and anti-rights orientation commonplace on the radical and especially Marxist left.⁴⁵ Critics of conventional liberal models of the law, they broke decisively with Marxist instrumentalism while offering a complex and appropriately appreciative assessment of law's achievements. In contrast to heavy-handed critics on both the left and right (for example, Carl Schmitt), they underscored law's protective functions

along with its fundamental normative virtues. Of course, they worried about legal "deformalization" (Neumann) or "juridification" (Habermas) in the context of contemporary society. Yet their anxieties remained situated in a broader framework that allowed them to recognize the indispensable contributions to autonomy made by a host of modern legal practices and institutions.

To be sure, both Fraser and Honneth try to point us in the direction of a similarly balanced assessment of modern law. Unfortunately, such productive theoretical tendencies coexist uneasily alongside less fruitful moments, that is, Fraser's (occasional) neo-Marxist legal instrumentalism, and Honneth's reworked (and strikingly communitarian) Hegelianism, in which Hegel's emphatic defense of so many features of modern law and rights fades into the background.⁴⁶ If we now jettison a sufficiently complex and nuanced view of modern law for potentially overstated worries about "legalism," critical theory risks committing theoretical and political mistakes it has previously circumvented. We potentially blur the divide vis-à-vis competing (communitarian, poststructuralist, post-Marxist or other) approaches for which law and rights too often remain fundamentally an impediment to autonomy rather than something indispensable to its realization. For reasons I hope should now be clear, I believe that this would be a mistake.

Do we really believe that the excesses of "legalism" today get in the way of progressive social change? Perhaps we should ask the many detainees still held by my country in Guantanamo Bay, or in similarly repressive "camps" operated by other countries where basic liberties are systematically denied. Or those angered by National Security Agency surveillance and its many flagrant violations of civil liberties. Or women and children almost everywhere still subject to arbitrary patriarchal power and very much in need of more rights and legal protections. Or working-class people — with the exception of those residing in a few rich northern European countries — pretty much universally denied basic social rights. Or, far more dramatically, the thousands of refugees now fleeing the horrors of civil war in Syria and elsewhere. The least of their worries, I suspect, are the excesses of legalism. Let us first create a planet where basic rights, the rule of law, and constitutionalism are secure. Then we can have a more productive conversation about their possible pathologies.

NOTES

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1. Nancy Fraser, interviewed by Jo Littler, "An Astonishing Time of Great Boldness: On the Politics of Recognition and Redistribution" 2014 accessed August 15, 2015, <http://www.eurozine.com>.
2. Axel Honneth, *Freedom's Right: The Social Foundations of Democratic Life*, trans. Joseph Ganahl (Cambridge: Polity Press, 2015 [2011]), 66–7. (Henceforth referenced in text as *FR*).
3. Rainer Forst's work comes immediately to mind. For an important early (and still vital) contribution to this genre, Ken Baynes, *The Normative Grounds of Social Criticism: Kant, Rawls, and Habermas* (Albany: SUNY Press, 1992). On the Habermas–Rawls exchange more generally, the excellent volume edited by James Gordon Finalyson and Fabian Freyenhagen, *Habermas and Rawls: Disputing the Political* (London: Routledge, 2011).
4. See, for example, the (obviously otherwise theoretically divergent) writings of Andrew Arato, Hugh Baxter, Seyla Benhabib, Hauke Brunkhorst, Jean L. Cohen, Sandro Ferrara, Günther Frankenberg, Klaus Gunther, and David Rasmussen. Others who have tried to employ the resources of critical theory to interrogate legal and constitutional issues include Simone Chambers, Todd Hedrick, Peter Niesen, Chris Zurn, and myself. In the final section of the article, I say a bit more about this large and growing body of work. Finally, we should mention some legal scholars whose work inspired Habermas, and with whom he has periodically engaged in important theoretical exchanges: Ingeborg Maus, Frank Michelman, and Ulrich Preuss.
5. Axel Honneth, *The Struggle for Recognition: The Moral Grammar of Social Conflicts*, trans. Joel Anderson (Cambridge: MIT Press, 1996).
6. Nancy Fraser and Axel Honneth, *Redistribution or Recognition: A Political-Philosophical Debate* (New York: Verso, 2003), 250. [Henceforth referenced in text as *RR*]. The volume contains two lengthy opening essays by Fraser and Honneth, in which they lay out their positions and their differences, and then a critical response by each.
7. See also Honneth, *Struggle for Recognition*, 168–70.
8. Including some working in the Frankfurt tradition with strong neo-Marxist tendencies, i.e., Ingeborg Maus, *Zur Aufklärung der Demokratietheorie* (Frankfurt: Suhrkamp, 1992). On Maus and Habermas, see Peter Niesen and Oliver Eberl, "Demokratischer Positivismus: Habermas und Maus," *Neue Theorien des Rechts*, eds. Sonja Buckel, Ralph Christensen, and Andreas Fischer-Lescano (Stuttgart: Lucius & Lucius, 2006), 3–28.
9. Keven Olson, ed., *Adding Insult to Injury: Nancy Fraser Debates Her Critics* (New York: Verso, 2008).
10. Habermas, *Between Facts and Norms: Contributions to a Discourse Theory of Law and Democracy*, trans. William Rehg (Cambridge: MIT Press, 1996 [1992]), 82–131.
11. Daniel Loick, "Juridification and Politics: From the Dilemma of Juridification to the Paradoxes of Rights," *Philosophy and Social Criticism* 40 (2014): 765.
12. For example, where Honneth describes the struggle for basic rights "as the institutional preparation for a third sphere of social freedom" (*FR*, 260), and where he seems to offer praise for the UN Declaration of Human Rights (*FR*, 279–80).
13. Judith N. Shklar, *Legalism: Law, Morals, and Political Trials* (Cambridge: Harvard University Press, 1986 [1964]).
14. Franz L. Neumann, "The Concept of Political Freedom," in William E. Scheuerman (ed.), *The Rule of Law Under Siege: Selected Essays of Franz L. Neumann and Otto Kirchheimer* (Berkeley: University of California Press, 1996), 195–230.
15. Perhaps this is why the otherwise valuable secondary literature on Honneth has not said much about his views of the law or their vulnerabilities. See, for example, Bert van den Brink and David Owen, eds., *Recognition and Power: Axel Honneth and the Tradition of Critical Social Theory* (Cambridge: Cambridge University Press, 2007); Danielle Petherbridge, *The Critical Theory of Axel Honneth* (Lanham: Lexington Books, 2013); Chris Zurn, *Axel Honneth* (Cambridge: Polity Press, 2015).
16. As should become clear in what follows, Honneth's worries about legalism are complicated and multifaceted. His account does not sufficiently disentangle them, though I hope that my critical exegesis can help do so. First, he worries about the limitations or inadequacy of legal freedom, conceived of as a system of subjective rights, and thus the necessity of a broader conception of freedom. Second, he is concerned about law's extension into social contexts where he deems it inappropriate and potentially counterproductive. This second strand sometimes contains a quasi-psychological anxiety about legalism's impact on human personality. More broadly, the critique of legalism ultimately rests on a (Hegelian) methodological preference for viewing normativity as located within social and historical practice, a position that obviously sets him apart from "legalistic" Kantians (and others). Its importance notwithstanding, I am forced to neglect this final aspect of his critique in the present article. (I am grateful to Maeve Cooke for much of this formulation).
17. Modern pluralism, I would argue, is the most basic reason why law and legalization are essential to freedom in the family, the economy, and so on.
18. Hegel, *Elements of the Philosophy of Right*, ed. Allen Wood (Cambridge: Cambridge University Press, 1991).
19. A point made, by the way, by a wide range of legal theorists, ranging from Joseph Raz and Jeremy Waldron to Lon Fuller and Franz L. Neumann.
20. Compare also Honneth's cursory treatment with Habermas' impressive discussion in *Between Facts and Norms*. I say more on the significance of this contrast below.
21. He also cites one somewhat outdated (1980) German scholarly source. For a recent survey of the massive literature on juridification, Lars Chr. Blichner and Anders Molander, "Mapping Juridification," *European Law Journal* 1 (2008): 36–54.
22. Hegel, *Philosophy of Right*, 130. The tendency to turn to Hegel's ideas about the limits of abstract right to make some rather general claims about modern law (and its limits) already occurred, I believe, in two 1999 lectures, since published by Honneth as *The Pathologies of Individual Freedom: Hegel's Social Theory*, trans. Ladislaus Löb (Princeton: Princeton University Press, 2010), 28–34. There he reads Hegel's discussion of abstract right as already pointing to "the negative character of formal right" (p. 36).
23. At least if we partly associate, as Hegel did, the rule of law with codified law. For Honneth's worries about codification see *FR*, 89–90. On Hegel and the rule of law see, for example, Shlomo Avineri, *Hegel's Theory of the Modern State* (Cambridge: Cambridge University Press, 1972), 190–3; Steven B. Smith, *Hegel's Critique of Liberalism* (New Haven: Yale University Press, 1991), 145–48.
24. See also Honneth, *The Pathologies of Individual Freedom*, 36.
25. Honneth forcefully criticizes orthodox Marxist reductionism about basic rights. Yet Marx's troublesome reading of modern civil liberties (as the rights of the bourgeois) haunts Honneth, as does Marx's overly sharp contrast between democratic participatory and liberal civil rights (*FR*, 74).

26. I am grateful to an anonymous reviewer for encouraging me to clarify this point.

27. Habermas, *The Theory of Communicative Action*, Vol. II, trans. Thomas McCarthy (Boston: Beacon Press, 1987 [1981]), Section VIII (3).

28. *Ibid.*, Vol. II, 356.

29. William E. Scheuerman, "Capitalism, Law, and Social Criticism," *Constellations* 20 (2013): 571–86.

30. Loick, "Juridification and Politics," 768. Loick's turn to Judith Butler for an antidote is likely to kill rather than cure the patient: Butler's anti-legalism is far more pronounced and troublesome than Honneth's.

31. Nancy Fraser, "What's So Critical about Critical Theory?" (1985) in Fraser, *Unruly Practices: Power, Discourse, and Gender in Contemporary Social Theory* (Minneapolis: University of Minnesota Press, 1989), 111–43.

32. Ingeborg Maus, *Rechtstheorie und politische Theorie im Industriekapitalismus* (Munich: Wilhelm Fink, 1986), 300–23.

33. Honneth, *Struggles for Recognition*, 122; also 128.

34. *Ibid.*, 125.

35. See, for example, Franz L. Neumann, "The Change in the Function of Law in Modern Society" (1937), in *The Rule of Law under Siege*, 101–41. For a recent attempt to update Neumann's intuitions, see William E. Scheuerman, *Frankfurt School Perspectives on Globalization, Democracy, and the Law* (New York: Routledge, 2008).

36. Scheuerman, "Capitalism, Law, and Social Criticism."

37. A point made forcefully by so much of Fraser's own work, for example, her longstanding (and once somewhat unfashionable) attempt to get Frankfurt critical theorist to engage productively — and not dismissively — with feminism, French theory, and so on.

38. Among many other publications, see Andrew Arato, *Civil Society, Constitutionalism, and Legitimacy* (Lanham: Rowman & Littlefield, 2000); Christopher Zurn, *Deliberative Democracy and the Institutions of Judicial Review* (Cambridge: Cambridge University Press, 2009), Günter Frankenberg, *Die Verfassung der Republik* (Frankfurt: Suhrkamp, 1997). On legal and constitutional interpretation, Klaus Günther, *The Sense of Appropriateness: Application Discourses in Morality and Law* (Albany: SUNY Press, 1993).

39. William E. Scheuerman, *Between the Norm and the Exception: The Frankfurt School and the Rule of Law* (Cam-

bridge: MIT Press, 1994); William E. Scheuerman, *Frankfurt School Perspectives on Globalization, Democracy, and the Law* (London: Routledge, 2008).

40. For example, Seyla Benhabib, *Dignity in Adversity: Human Rights in Troubled Times* (Cambridge: Polity Press, 2011); Ingeborg Maus, *Menschenrechte, Demokratie und Frieden*. Perspektiven globaler Organisation (Frankfurt: Suhrkamp, 2015).

41. For example, Jean L. Cohen, *Globalization and Sovereignty. Rethinking Legality, Legitimacy, and Constitutionalism* (Cambridge: Cambridge University Press, 2012).

42. See, for example, Hauke Brunkhorst's monumental *Critical Theory of Legal Revolutions: Evolutionary Perspectives* (London: Bloomsbury, 2014).

43. Think, for example, of the many essays published in this journal dealing with the legal and institutional challenges of post-9/11 "emergency rule."

44. Neumann's volume appeared in English under the revised title *The Rule of Law under Siege: Political Theory and the Legal System in Modern Society* (Leamington Spa: Berg, 1986 [1936]). Honneth has occasionally engaged Neumann's work (see, for example, Honneth, "Anxiety and Politics: The Strengths and Weaknesses of Franz Neumann's Diagnosis of a Social Psychology," *Constellations* 10 [2003]: 247–55), but as a social theorist and social psychologist and not a legal sociologist or theorist.

45. Though often missed, Habermas' interest in the law is longstanding and characterizes even his early unabashedly Marxist writings (Matthew Specter, *Habermas: An Intellectual Biography* [New York: Cambridge University Press, 2010]).

46. The modern communitarian critique of law was anticipated by the critical legal theorist Roberto Mungabeira Unger (*Law in Modern Society: Toward a Criticism of Social Theory* [New York: Free Press, 1976]). To his credit, Unger's more recent writings have, in my view, smartly distanced themselves from such early communitarian dismissals of rights and the rule of law.

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